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Industrial Designs – Detailed and Simple Explanation

The uploaded notes explain **Industrial Designs**, which are a type of Intellectual Property (IP) right that protects the **appearance** of products.

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1. Introduction to Industrial Designs

When people buy a product, they don't only consider:

- **Utility (Functionality)** → What the product does.
- **Appearance (Aesthetics)** → How attractive it looks.

For example:

- Two watches may show the same time.
- One watch looks stylish and modern.
- Most people may prefer the stylish one.

The attractive appearance is created through **design**.

What is a Design?

A design is the:

- Shape
- Pattern
- Color
- Lines
- Surface decoration
- Combination of these features

that make a product visually appealing.

Examples:

- Shape of a Coca-Cola bottle
- Design of a smartphone
- Pattern on fabric
- Shape of a chair

- Jewellery designs

The design must be judged **only by the eyes**.

2. Industrial Design Definition

An industrial design refers to the:

Ornamental or aesthetic aspect of an article.

It can include:

A. Three-Dimensional Features

These relate to shape.

Examples:

- Shape of a bottle
- Shape of a car
- Shape of a chair

B. Two-Dimensional Features

These relate to decoration.

Examples:

- Textile patterns
- Wallpaper designs
- Decorative lines
- Color combinations

C. Combination of Both

Example:

- A uniquely shaped bottle with decorative patterns.
-

3. What Industrial Design Does NOT Protect

Industrial design does **not** protect:

Functional Features

Example:

- Engine mechanism of a car

- Internal working of a machine

These are protected through patents.

Principle of Construction

Example:

- How a chair is assembled.

Design law only protects:

How the chair looks.

Not:

How the chair works.

4. Difference Between Copyright and Industrial Design

Copyright

Protects artistic works.

Examples:

- Paintings
- Drawings
- Sculptures

Industrial Design

Protects artistic appearance applied to useful products.

Example:

- A painting → Copyright
 - Same painting printed on a mass-produced cup → Design protection
-

5. Objective of Design Registration

The purpose is:

Reward the Creator

The designer spends:

- Time
- Creativity

- Money

to create a unique design.

Therefore, the law grants exclusive rights.

Encourage Innovation

People will continue creating attractive products if they know their designs are protected.

Prevent Copying

Competitors cannot legally copy the design.

6. Design Protection in India

Earlier:

Designs Act, 1911

This law existed before.

Now replaced by:

Designs Act, 2000

This is the current law governing industrial designs in India.

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7. Industrial Design in Business

Companies spend huge amounts on product design because it helps them sell more products.

Example

A phone company may create:

- Curved edges
- Premium appearance
- Attractive colors

Although performance may be similar to competitors, customers may choose it because it looks better.

8. Importance of Industrial Designs

Industrial designs apply to many products.

Examples include:

Fashion Products

- Clothes
- Shoes
- Handbags

Household Products

- Furniture
- Kitchen appliances
- Toys

Luxury Goods

- Watches
- Jewellery

Industrial Products

- Medical instruments
- Machines

Vehicles

- Cars
- Motorcycles

Packaging

- Bottles
- Containers
- Product boxes

9. Why Businesses Create New Designs

The notes mention three major reasons.

A. Appeal to Different Customers

Different people have different tastes.

Example:

Children's Watch

- Bright colors
- Cartoon characters

Adult Watch

- Elegant design
- Professional appearance

Same function, different designs.

B. Create a New Market

Businesses use design to stand out.

Example:

Many companies sell shoes.

A company introducing a unique shoe design can attract new customers and create its own market niche.

C. Strengthen the Brand

Design helps people recognize a brand.

Examples:

- Unique bottle shape
- Unique packaging
- Distinctive product appearance

When customers see the design, they immediately identify the brand.

10. Why Protect Industrial Designs?

A good design increases product value.

Benefits include:

1. Prevents Copying

Competitors cannot imitate your design legally.

2. Competitive Advantage

Your product remains unique.

3. Higher Profits

Unique products often sell at higher prices.

4. Business Asset

The design itself becomes valuable property.

5. Licensing Revenue

You can allow others to use the design and collect fees.

6. Encourages Fair Competition

Companies compete through innovation rather than copying.

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11. Procedure for Obtaining Design Protection

There are 10 main steps.

Step 1: Research

Check whether similar designs already exist.

Purpose:

- Ensure novelty
 - Avoid legal disputes
-

Step 2: Choose Jurisdiction

Decide where protection is required.

Examples:

- India
 - USA
 - European Union
-

Step 3: Prepare Documents

Include:

- Drawings
- Images
- Design description

Step 4: File Application

Submit application to the intellectual property office and pay fees.

Step 5: Examination

The authority checks:

- Novelty
 - Originality
 - Legal requirements
-

Step 6: Publication

The design is published publicly.

Purpose:

- Inform others
 - Allow objections
-

Step 7: Opposition Period

Others may challenge the design if they believe:

- It copies their design
 - It violates their rights
-

Step 8: Registration

If approved:

- Registration certificate is issued.
 - Legal rights are granted.
-

Step 9: Renewal

Design protection is not permanent.

Renewal fees must be paid periodically.

Step 10: Enforcement

The owner can act against infringers.

Possible actions:

- Legal notices
- Court cases
- Compensation claims

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12. Revocation of Industrial Designs

Meaning

Revocation means:

Cancellation of a registered design.

Reasons for Revocation

A. Lack of Novelty

The design already existed before registration.

B. Lack of Originality

The design is not sufficiently unique.

C. Lack of Individual Character

The design is too similar to existing designs.

D. Non-Compliance

Application procedures were not followed properly.

E. Invalidity Claims

Another person proves they have prior rights.

13. Infringement of Industrial Designs

Meaning

Infringement occurs when someone uses a protected design without permission.

Examples:

- Manufacturing copied products
 - Selling copied products
 - Importing copied products
 - Distributing copied products
-

Signs of Infringement

- Exact copying
 - Close imitation
 - Unauthorized commercial use
-

14. Remedies for Infringement

When infringement occurs, the owner can seek remedies.

A. Cease and Desist Notice

Official warning to stop infringement.

B. Negotiation

Parties may settle through:

- Licensing
 - Compensation
-

C. Injunction

Court order stopping further infringement immediately.

D. Damages

Financial compensation for losses.

E. Destruction or Seizure

Court may order:

- Confiscation
 - Destruction of infringing goods
-

F. Legal Proceedings

The owner may file a lawsuit and seek appropriate relief.

Quick Exam Summary

Industrial Design = Visual appearance of a useful product.

Protects:

- Shape
- Pattern
- Color
- Ornamentation
- Surface decoration

Does Not Protect:

- Function
- Technical features
- Construction methods

Benefits:

- Prevents copying
- Increases profits
- Strengthens brands
- Creates market advantage

Procedure:

Research → Jurisdiction → Documents → Filing → Examination → Publication → Opposition → Registration → Renewal → Enforcement

Major Legal Issues:

- Revocation
- Infringement
- Remedies

This is the complete exam-oriented explanation of the notes.

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Case Studies of Industrial Design

These are real-world examples showing how industrial design can make products successful and iconic.

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1. iPhone Design by Apple

Features

- Sleek and minimalist appearance
- Smooth edges
- Large touchscreen display
- Premium look and feel

Importance

- Revolutionized the smartphone industry.
- Made design a major selling point of smartphones.
- Apple protected its design through design patents.

Key Lesson

A product's appearance can become as important as its functionality.

2. Alessi Juicy Salif Citrus Juicer



Designer

Philippe Starck

Features

- Looks like a futuristic insect.
- Highly artistic and sculptural.
- Very different from traditional juicers.

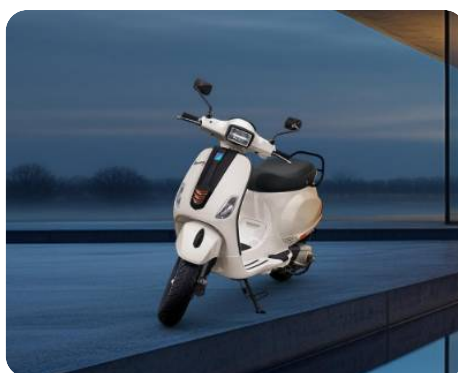
Importance

- Became a design icon.
- Included in the permanent collection of Museum of Modern Art.

Key Lesson

A product can become famous because of its appearance even if its functionality is debated.

3. Vespa Scooter



Designer

Corradino D'Ascanio

Features

- Streamlined body
- Elegant shape
- Distinctive front design
- Single-piece steel frame

Importance

- Changed urban transportation.
- Became a cultural symbol of Italy.
- Remains popular decades later.

Key Lesson

Timeless design can keep a product relevant for generations.

4. Swatch Watch

Features

- Colorful plastic body
- Stylish appearance
- Affordable price
- Simple minimalist design

Importance

- Made fashionable watches affordable.
- Revived the Swiss watch industry.
- Built a strong global brand.

Key Lesson

Good design can transform an ordinary product into a worldwide success.

5. Oxo Good Grips Kitchen Tools

Features

- Ergonomic handles
- Easy-to-use controls
- Comfortable grip
- Accessibility-focused design

Importance

- Useful for people of different ages and abilities.
- Won multiple design awards.
- Became highly popular among consumers.

Key Lesson

Industrial design is not only about beauty but also about user comfort and usability.

COPYRIGHT

What is Copyright?

Copyright is a legal right given to creators of original works such as:

- Books
- Articles
- Poems
- Paintings
- Music
- Films
- Software
- Photographs

The creator automatically becomes the owner of the work as soon as it is created. Registration is generally not required for copyright to exist.

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Important Point

Copyright protects:

✓ Expression of ideas

Copyright does NOT protect:

✗ Ideas themselves

Example:

- Idea: "A story about a wizard school" → Not protected.
- Actual written novel → Protected.

Nature and Scope of Copyright

Copyright provides two major categories of rights.

1. Economic Rights

These allow the owner to earn money from the work.

Examples:

- Reproduction
- Publication
- Broadcasting
- Translation
- Adaptation

- Distribution
 - Public performance
-

2. Moral Rights

These protect the author's reputation.

Examples:

Right of Authorship

The creator can claim ownership of the work.

Right of Integrity

The creator can object to alterations that damage his reputation.

Berne Convention

The international copyright framework is based on the:

Berne Convention

Adopted

1886

Administered By

World Intellectual Property Organization

Main Purpose

Provide copyright protection across member countries.

Copyright in India

Historical Development

1847

First copyright law introduced during British rule.

1911

British Copyright Act became applicable in India.

1957

Copyright Act, 1957 enacted.

2003 Amendment

Major amendment came into force in 2004.

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Works Protected in India

The Copyright Act protects:

Literary Works

- Books
- Articles
- Computer programs

Dramatic Works

- Plays

Musical Works

- Songs
- Musical compositions

Artistic Works

- Paintings
- Drawings
- Sculptures

Cinematograph Films

Sound Recordings

Rights of Copyright Owners

The owner can:

1. Reproduce the work.
2. Publish the work.
3. Perform it publicly.

4. Translate it.
5. Adapt it.
6. Create films based on it.
7. Authorize others to do these activities.

These rights are exclusive.

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Ownership of Copyright

Normally:

Author = Copyright Owner

However, exceptions exist.

1. Employer-Employee Situation

If an employee creates a work during employment, ownership may belong to the employer.

2. Assignment

The creator may transfer rights through a written agreement.

Duration of Copyright in India

Literary, Dramatic, Musical and Artistic Works

Protection lasts:

Life of author + 60 years after death

Photographs, Films and Sound Recordings

Protection lasts:

60 years from first publication

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Fair Use

Certain uses do not amount to infringement.

Examples:

- Research

- Education
- Criticism
- Review
- News reporting

These are allowed under Section 52 of the Copyright Act.

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Copyright Infringement and Punishment

Infringement Means

Using copyrighted material without permission.

Examples:

- Software piracy
- Movie piracy
- Unauthorized copying of books

Punishment in India

General Infringement

- Minimum imprisonment: 6 months
- Maximum imprisonment: 3 years
- Fine: ₹50,000 to ₹2,00,000

Software Piracy

- Imprisonment: 7 days to 3 years
- Fine: ₹50,000 to ₹2,00,000

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Related Rights (Neighbouring Rights)

Related rights belong to people who help communicate creative works to the public.

Performers

- Singers
- Actors
- Musicians

Producers

- Music companies
- Record labels

Broadcasting Organizations

- TV channels
- Radio stations

These rights are different from copyright but closely connected.

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Rights Conferred by Copyright

The creator can authorize or prohibit:

- Reproduction
- Recording
- Broadcasting
- Translation
- Adaptation
- Public performance

The creator may also license these rights and receive royalties.

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Does Copyright Protect Ideas?

No.

Copyright protects only the expression of ideas.

Example:

Idea:

"A superhero who can fly."

Not protected.

Specific story, dialogues and artwork:

Protected.

When Does Copyright Begin?

Copyright begins automatically when the work is:

1. Created.
2. Fixed in a tangible form.

Examples:

- Written on paper.
- Saved as a file.
- Recorded as audio.

Registration is generally not necessary for copyright to exist.

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The © Symbol

Example:

Copyright © 2026 John Smith

Meaning:

- John Smith owns the copyright.
- The work was created in 2026.

The year indicates creation/publication, not expiry.

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Exam-Oriented Quick Summary

Industrial Design

- Protects appearance of products.
- Covers shape, patterns, colors, ornamentation.
- Does not protect functionality.
- Examples: iPhone, Vespa, Swatch.

Copyright

- Protects original literary, artistic, musical and dramatic works.
- Protects expression, not ideas.
- Rights include reproduction, publication, translation and adaptation.
- Duration in India:
 - Life + 60 years (authors)
 - 60 years from publication (films, photos, sound recordings)
- Infringement can lead to imprisonment and fines.

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COMPUTER SOFTWARE AND IPR

This topic explains how **computer software is protected under Intellectual Property Rights (IPR)**, mainly through **copyright** and sometimes through **patents**.

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1. Protection of Computer Software Under Copyright

During the 1970s and 1980s, there was a debate:

Should computer software be protected by Copyright, Patent, or a separate (sui generis) system?

After extensive discussions by:

- World Intellectual Property Organization
- UNESCO

it was decided that:

Computer programs should be protected under Copyright Law.

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Why Copyright Was Chosen

Reason 1: Software is Like Writing

Computer programs consist of written instructions.

Example:

```
C++  
if(a>b)  
    cout<<a;
```

Like a book consists of written words, software consists of written code.

Therefore software can be treated as a literary work.

Reason 2: Berne Convention Supports It

According to the:

Berne Convention

original writings qualify as literary works.

Since software is an original intellectual creation, it can receive copyright protection.

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Reason 3: Copyright Protects Expression

Copyright protects:

- ✓ Source code
- ✓ Program structure
- ✓ Organization of code

But does not protect:

- ✗ Ideas
- ✗ Algorithms
- ✗ Mathematical concepts

This creates a balance between protection and innovation.

Source Code and Object Code

Software exists in two forms.

Source Code

Human-readable code.

Example:

```
C++  
cout<<"Hello";
```

Programmers can understand it.

Object Code

Machine-readable code.

Example:

```
101011010101
```

Computers understand it.
Humans generally cannot.

Decompilation

Converting object code back into source code.

Example:

Object Code → Source Code

This process is called:

Decompilation

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Recompilation

The notes define recompilation as:

Reproduction and adaptation (translation) of a computer program into a form where its coding and structure can be analyzed.

In simple words:

- Convert program into another understandable form.
- Examine program logic and structure.

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Copyright Issues When Computers Are Used

Two major questions arise.

Question 1

If a copyrighted work is stored inside a computer,
does copyright still apply?

Answer

Yes.

Storing a copyrighted work in a computer is considered:

- Reproduction
- Fixation

and remains protected by copyright.

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Question 2

If a computer helps create a work,
who becomes the author?

Example

A musician uses software to create music.

Who is the author?

- Musician?
- Programmer?
- Computer?

Answer

Generally:

The person who conceived the work is the author.

The computer is only a tool.

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Who Is Considered the Author?

Normally:

Author

The person who:

- Creates the idea
- Gives instructions
- Controls the creative process

is considered the author.

Not Usually Authors

Programmer

The person who wrote the software.

Technician

The person operating the computer.

Because they merely provide tools.

Exception

If the programmer contributes creatively to the final work,
he may become a:

Co-author

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Important Conclusions of WIPO and UNESCO

The expert committee concluded:

1. Inputting a Work into a Computer

Protected by copyright.

Because it involves:

- Reproduction
 - Fixation
-

2. Output from a Computer

Also protected.

Examples:

- Printout
 - Digital file
 - Audio output
 - Screen display
-

3. Moral Rights Continue

Even when computers are used,
authors retain:

- Right of attribution
 - Right of integrity
-

4. Non-Voluntary Licenses

Should only be used when voluntary licensing is impractical.

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Patenting of Computer Software

Initially patent offices rejected software patents.

Why?

Because patents are granted for:

- Processes
- Machines
- Manufactures
- Compositions

But not for:

- Mathematical formulas
- Scientific truths

Software was viewed as merely mathematics.

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Change in Approach

Around the 1980s some countries started allowing software-related patents.

Most notable:

United States

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Problems with Software Patents

Many experts oppose broad software patents because:

Problem 1

Too many patents exist.

Problem 2

Developers may unknowingly infringe patents.

Problem 3

Innovation becomes difficult.

Programmers may fear lawsuits.

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Copyright vs Patent for Software

Copyright	Patent
Protects source code	Protects invention
Automatic protection	Requires patent application
Protects expression	Protects idea/technical solution
Cheaper	Expensive
Long duration	Limited duration

Software Piracy

Meaning

Software piracy means:

Copying or distributing software without permission from the copyright owner.

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Software Industry Structure

Step 1

Software is developed by programmers.

Step 2

Publishers distribute software.

Step 3

Distributors supply retailers.

Step 4

Retailers sell to users.

Step 5

Users obtain licenses.

This often occurs through:

Shrink-wrap licenses

(the license agreement inside software packaging).

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Why Software Piracy is Common

Unlike books:

A software copy is nearly identical to the original.

Example:

- Original MS Office
- Pirated MS Office

They look and work almost the same.

Hence copying becomes easy.

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Five Types of Software Piracy

1. Counterfeiting

Creating fake copies that look like original software.

Includes:

- Fake disks
 - Fake packaging
 - Fake manuals
-

2. Reseller Piracy

Dealers install unauthorized copies on computers they sell.

Example:

A computer shop installs pirated Windows.

3. Mail Order Piracy

Illegal software copied and distributed through mail.

4. Bulletin Board Piracy

Sharing software through communication networks.

Modern equivalent:

- Illegal download websites
 - Torrent sharing
-

5. End-User Piracy

Most common type.

Example:

Buying one software license and installing it on many computers.

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Detecting Pirated Software

Packaged Software

Signs of piracy:

- Missing labels
 - Handwritten labels
 - Missing manuals
 - Missing license cards
-

Installed Software

Authorities may ask for:

- Original package
- Purchase receipts
- License documentation

Failure to produce them may indicate infringement.

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Software Piracy Statistics Mentioned

According to the notes:

Europe

Estimated software piracy losses:

US \$6 billion annually

Highest Piracy Rates (1996)

- Vietnam – 99%
 - Indonesia – 97%
 - China – 96%
 - Russia – 91%
-

India

Survey by:

- Business Software Alliance
- NASSCOM

Estimated:

- Losses $\approx$ ₹500 crore
- Piracy rate $\approx$ 60%

(As cited in the notes.)

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Exam-Oriented Quick Summary

Computer Software Protection

- Protected mainly through copyright.
- Treated as a literary work.
- Source code and object code are protected.

Author of Computer-Generated Work

- Computer = Tool.
- Creator of the idea = Author.
- Programmer becomes co-author only if creatively involved.

Software Patents

- Initially rejected.
- Later accepted in some countries.
- Remain controversial.

Software Piracy Types

1. Counterfeiting
2. Reseller piracy
3. Mail-order piracy
4. Bulletin-board piracy
5. End-user piracy

Key Principle

Copyright protects software expression (code), while patents may protect software-related inventions.

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5. Transfer of Copyright

Meaning

Copyright transfer means:

The owner of a copyrighted work transfers some or all of their copyright rights to another person or organization while the copyright is still valid.

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Example

A writer writes a book.

The writer may transfer copyright to a publisher.

After transfer, the publisher may get rights to:

- Print the book
 - Sell the book
 - Distribute the book
-

Copyright Assignment

The process of transferring copyright ownership is called:

Assignment of Copyright

Requirements in India

A copyright assignment must:

- Be in writing
- Be signed by the parties
- Specify rights being transferred
- Mention duration of transfer

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Copyright Transfer Document

A Copyright Transfer Document is a legal agreement that:

- Protects the creator
- Specifies rights transferred
- Defines terms and conditions
- Records ownership changes

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Licensing vs Assignment

Assignment	Licensing
Ownership is transferred	Ownership remains with original owner
Rights move to assignee	Only permission is granted
Permanent or for specified period	Usually limited permission
Assignee becomes copyright owner for assigned rights	Licensee only gets usage rights

Example

Assignment

Author sells copyright of a novel to a publisher.

Publisher becomes owner.

License

Author allows publisher to print 10,000 copies.

Author still owns copyright.

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6. Rights of Broadcasting Organizations and Performers

These are called **Related Rights (Neighbouring Rights)** because they are connected to copyright but are not traditional copyright.

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Broadcaster's Rights

Historical Background

Originally copyright protected only:

- Literary works
- Artistic works

With the growth of:

- Radio
- Television
- Satellite broadcasting

special rights became necessary for broadcasters.

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Why Protect Broadcasters?

Broadcasting organizations invest money in:

- Equipment
- Transmission systems
- Production
- Distribution

Therefore the law gives them protection against unauthorized rebroadcasting.

Nature of Broadcast Rights

A broadcast itself receives protection.

However:

Important Point

The broadcaster does NOT become owner of the underlying work.

Example:

A drama is broadcast on TV.

There are now two separate rights:

Copyright in Drama

Owned by playwright or producer.

Broadcast Right

Owned by broadcaster.

Both coexist independently.

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Example

Suppose actors perform a live play.

The play is broadcast on television.

Actors

Protected through Performer's Rights.

Playwright

Protected through Copyright.

TV Channel

Protected through Broadcast Reproduction Rights.

Thus three different rights may exist simultaneously.

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Can Anyone Broadcast Anything?

No.

Before broadcasting, permission may be required from the copyright owner.

Example:

A TV channel wants to broadcast a movie.

The channel must obtain:

- License
- Permission

from the copyright owner.

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What is a Broadcast?

A communication qualifies as a broadcast only if it falls within the statutory definition.

The medium of transmission must be legally recognized.

Example from notes:

Communication through a private mobile phone was held not to be a broadcast.

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Broadcaster's Rights in India

Protection was introduced through the:

Copyright (Amendment) Act, 1994

which inserted Section 37.

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Broadcast Reproduction Rights

The broadcasting organization gets rights to:

1. Reproduce the Broadcast

Can make copies of the broadcast.

2. Cause Broadcast to be Heard or Seen

Can commercially show the broadcast.

3. Make Audio or Video Recordings

Can record broadcasts.

4. Reproduce Unauthorized Recordings

Control further copying.

5. Sell or Hire Recordings

Can sell or rent authorized recordings.

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Exceptions to Broadcast Rights

Certain uses are permitted.

1. Private Use

Personal use is allowed.

2. Research and Training

For genuine educational purposes.

3. Reporting Current Events

Only extracts may be used.

4. General Copyright Exceptions

Those covered under Section 52.

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Important Case Laws

1. Super Cassettes Industries Ltd. v. Entertainment Network (India) Ltd.

Facts

Radio Mirchi broadcast songs owned by Super Cassettes without authorization.

Court Held

- Unauthorized broadcaster is an infringer.
- Compulsory licenses cannot be granted automatically.
- Public interest and copyright owner's rights must be balanced.

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2. Video Master v. Nishi Productions

Issue

Whether satellite broadcasting violated video copyright.

Court Held

- Satellite rights and video rights are different rights.
- One may exist without infringing the other.

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3. Garware Plastics & Polysters Ltd. v. Telelink

Issue

Cable operators were showing films through cable networks.

Court Held

- Cable transmission amounts to broadcasting.
- Cable viewers are members of the public.
- Unauthorized cable transmission infringes copyright.

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Performers' Rights

Why Were They Introduced?

Earlier performers had little protection.

Problems included:

- Secret recording of performances
- Unauthorized broadcasts
- Commercial exploitation without consent

This practice was called:

Bootlegging

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Copyright Amendment, 1994

The amendment granted special rights to performers in India.

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Who is a Performer?

A performer includes:

- Actor
- Singer
- Musician
- Dancer
- Acrobat
- Juggler
- Snake charmer
- Lecturer
- Any person giving a live performance

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Meaning of Performance

A performance means:

Any live visual or acoustic presentation by one or more performers.

Examples:

- Concert
- Dance show
- Drama
- Lecture

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Rights of a Performer

The performer has the exclusive right to:

1. Record the Performance

Audio or video recording.

2. Reproduce the Recording

Make copies.

3. Broadcast the Performance

Transmit to the public.

4. Communicate to Public

Other than through broadcast.

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Infringement of Performer's Rights

A person infringes if, without permission:

A. Records the Performance

Example:

Recording a concert secretly.

B. Reproduces Unauthorized Recording

Making copies of illegal recordings.

C. Broadcasts Performance

Without authorization.

D. Communicates Performance to Public

Without permission.

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Exception: Cinematograph Films

When a performer authorizes inclusion of the performance in a film:

Result

The rights generally pass to the film producer.

After authorization, the performer cannot later claim infringement regarding that use.

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Exam-Oriented Quick Summary

Copyright Transfer

- Transfer of copyright ownership.
- Done through assignment agreements.
- Must be in writing.
- Different from licensing.

Broadcaster's Rights

- Introduced in India through 1994 amendment.
- Broadcaster gets Broadcast Reproduction Rights.
- Protects investment in broadcasting.
- Separate from copyright in the underlying work.

Performer's Rights

- Protect actors, singers, musicians, dancers, etc.
- Prevent unauthorized recording and broadcasting.
- Include rights to record, reproduce, broadcast and communicate performances.
- Infringement occurs when these acts are done without consent.

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7. Exceptions to Copyright

Meaning

Copyright law gives exclusive rights to creators.

However, in certain situations, people can use copyrighted material **without permission**.

These situations are called:

Exceptions to Copyright

Examples:

- Education
- Research
- Private use
- News reporting
- Judicial proceedings

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Exceptions to Infringement of Performer's Rights

Section 39 of the Copyright Act specifies acts that do **not** amount to infringement of a performer's rights.

1. Private Use

A person may make:

- Sound recordings
- Video recordings

for personal/private use.

Example

You record a dance performance for your own viewing at home.

This is generally allowed.

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2. Teaching and Research

Recording or using a performance is permitted when done solely for:

- Teaching
- Academic research
- Educational purposes

Example

A music professor uses a concert recording to teach students.

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3. Fair Dealing

Excerpts of performances or broadcasts may be used for:

Reporting Current Events

Example:

A news channel shows a short clip from a concert while reporting on the event.

Review or Criticism

Example:

A reviewer plays a short portion of a song while reviewing it.

Teaching and Research

Example:

Using a short clip in a classroom presentation.

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4. Other Exceptions Under Section 52

The same exceptions available for copyright also apply to performer's rights.

A. Judicial Proceedings

Reproduction of works for:

- Court proceedings
- Legal evidence
- Judicial reports

is permitted.

B. Legislative Use

A legislature's secretariat may reproduce or publish works for use by members of the legislature.

C. Certified Copies

Copies supplied under authority of law are permitted.

D. Educational Institution Activities

Schools and colleges may perform:

- Literary works
- Dramatic works
- Musical works

if the audience is limited to:

- Students
- Staff
- Parents
- Persons directly connected with the institution

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Important Point

These exceptions generally apply to:

- Audio recordings
- Video recordings
- Broadcast material

Therefore making such recordings for the permitted purposes does not infringe performer's rights.

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Consent Requirement

When a copyrighted work or performance has been broadcast:

A licence to reproduce the broadcast may require:

- Consent of copyright owner
- Consent of performer
- Consent of both

depending on the situation.

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8. Infringement of Copyright – Case Study

Super Cassette Industries Ltd. v. Bathla Cassette Industries Pvt. Ltd.

This is an important Indian copyright case dealing with:

- Sound recordings
- Version recordings
- Performer's rights
- Copyright infringement

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Background of the Case

Plaintiff

Super Cassette Industries Ltd.

Known for:

T-Series

They produced audio cassettes and music recordings.

Defendant

Bathla Cassette Industries Pvt. Ltd.

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Facts of the Case

The original song:

"Chalo Dildar Chalo"

from the movie

Pakeezah

belonged to:

Mahal Pictures Pvt. Ltd.

What T-Series Did

T-Series produced a new recording of the song using:

- Different singers
- Different musicians
- Different arrangements

after paying royalty to the original copyright owner under Section 52(1)(j).

Such recordings are called:

Version Recordings

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What is a Version Recording?

A version recording means:

A new recording of an existing song performed by different artists.

Example

Original:

Lata Mangeshkar sings a song.

Version Recording:

A different singer records the same song.

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Dispute

Later, Bathla Cassette Industries wanted to make a version recording of T-Series' version recording.

T-Series objected and filed a lawsuit.

They argued:

We invested money, musicians, singers and creative effort.

Therefore:

Our version recording has its own copyright.

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Plaintiff's Arguments (T-Series)

T-Series claimed:

1.

They used:

- Musicians
- Singers
- Music directors

to recreate the song.

2.

Their version involved:

- Independent skill
 - Labour
 - Creativity
-

3.

Their recording should enjoy separate copyright protection.

4.

The defendant could not simply copy their version recording.

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Defendant's Arguments

Bathla Cassette Industries argued:

1.

T-Series itself had relied on Section 52(1)(j).

2.

Its recording was derived from an existing work.

3.

A derived recording cannot suddenly become a completely original work.

4.

If T-Series used the statutory exception to make a version recording, others should be allowed to do the same.

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Performer's Rights Issue

The defendant also argued that:

Replacing original singers with lesser-known singers may affect:

- Performer's rights
- Integrity of the original performance

especially after the 1994 amendment which recognized performer's rights.

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Core Legal Question

The Court had to determine:

Whether a Version Recording created under Section 52(1)(j)

can itself become:

An original copyrighted work entitled to independent protection.

This became the central issue.

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Importance of the Case

This case is important because it discusses:

Copyright in Sound Recordings

Who owns rights in re-recorded music?

Version Recordings

Can they receive independent protection?

Performer's Rights

How much protection should original performers receive?

Originality

When does a modified work become an original work?

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Exam-Oriented Quick Summary

Exceptions to Copyright / Performer's Rights

Allowed Uses:

- Private use
 - Research
 - Teaching
 - Fair dealing
 - Reporting current events
 - Judicial proceedings
 - Educational performances
-

Super Cassette Industries Ltd. v. Bathla Cassette Industries Pvt. Ltd.

Issue

Whether a version recording made under Section 52(1)(j) gets independent copyright protection.

Plaintiff

T-Series claimed:

- Independent skill and labour.
- Separate copyright in its version recording.

Defendant

Argued:

- Plaintiff itself relied on statutory exceptions.
- Such recordings should not receive exclusive protection preventing others from doing the same.

Legal Significance

A leading case on:

- Sound recording copyright
- Version recordings
- Performer's rights
- Originality in copyright law

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INTRODUCTION TO CYBER LAW

Cyber Law is the law governing cyber space. Cyber space is a very wide term and includes computers, networks, software, data storage devices (such as hard disks, USB disks etc), the Internet, websites, emails and even electronic devices such as cell phones, ATM machines etc.

Information Technology Act

In 1996, the United Nations Commission on International Trade Law (UNCITRAL) adopted the model law on electronic commerce (E-commerce) to bring uniformity in the law in different countries. Further, the General Assembly of the United Nations recommended that all countries must consider this model law before making changes to their own laws. India became the 12th country to enable cyber law after it passed the Information Technology Act, 2000.

The Information Technology Act, 2000 provides legal recognition to the transaction done via electronic exchange of data and other electronic means of communication or electronic commerce transactions.

This also involves the use of alternatives to a paper-based method of communication and information storage to facilitate the electronic filing of documents with the Government agencies.

The Information Technology Act, 2000 – in a phrase: ‘functional equivalence’ that amends the Indian Evidence Act, 1872 and the Indian Penal Code

Understanding the role of the medium – connects traditional evidence law to the Internet, Adaptability and Enforcement of Indian law – Sections 65B inserted in the Evidence Act on the production of electronic documents

Objectives of the Act

The objectives of the Act are as follows:

1. Grant legal recognition to all transactions done via electronic exchange of data or other electronic means of communication or e-commerce, in place of the earlier paper-based method of communication.
 2. Give legal recognition to digital signatures for the authentication of any information or matters requiring legal authentication
- 35
3. Facilitate the electronic filing of documents with Government agencies and also departments facilitate the electronic storage of data
 5. Give legal sanction and also facilitate the electronic transfer of funds between banks and financial institutions
 6. Grant legal recognition to bankers under the Evidence Act, 1891 and the Reserve Bank of India Act, 1934, for keeping the books of accounts in electronic form.

Non-Applicability

According to Section 1 (4) of the Information Technology Act, 2000, the Act is not applicable to the following documents:

1. Execution of Negotiable Instrument under Negotiable Instruments Act, 1881, except cheques.
2. Execution of a Power of Attorney under the Powers of Attorney Act, 1882.
3. Creation of Trust under the Indian Trust Act, 1882.
4. Execution of a Will under the Indian Succession Act, 1925 including any other testamentary disposition by whatever name called.
5. Entering into a contract for the sale of conveyance of immovable property or any interest in such property.
6. Any such class of documents or transactions as may be notified by the Central Government in the Gazette.

Scope or Extent of the ACT

It extends to the whole of India. It also applies to any offence or contravention committed outside India by any person irrespective of his nationality, provided such offence or contravention involves a computer, computer system or network located in India

Intermediary liability

Duties' under the Indian Information Technology Act may be interpreted to include the management of confidential information and intellectual property

Intermediary liability occurs where governments or private litigants can hold technological intermediaries, such as ISPs and websites, liable for unlawful or harmful content created by users of those services.

Section 2 [w] of The Indian Information Technology Act, 2000 [Amended in 2008] defines 'Intermediary': Intermediary, with respect to any particular electronic records, means any person who on behalf of another person receives, stores or transmits that record or provides any service with respect to that record and includes telecom service providers, network service providers, internet service providers, web-hosting service providers, search engines,

36

online payment sites, online-auction sites, online-market places and cyber cafes. Intermediary Liability - Distribution of content: [a] copyright violations [music, films, and images]; [b] prohibited content [hate, racism, pornography] Case Study / Illustration: Baazee Case [Sale of the MMS Clip]

Intermediary Liability from 'Knowledge' – grievance notice should be acknowledged within 36 hours [mandatory under the Rules] and Time given to respond in full measure is maximum of 21 days under the Rule.

Intermediary Liability [Case Study]: T-Series v. MySpace [Delhi High Court]

Digital Signature

According to Section 2(1) (p), digital signature means 'authentication of any electronic

record using an electronic method or procedure in accordance with the provisions of Section 3'.

Further, digital signatures authenticate the source of messages like an electronic mail or a contract in electronic form.

The three important features of digital features are:

1. Authentication – They authenticate the source of messages. Since the ownership of a digital certificate is bound to a specific user, the signature shows that the user sent it.
2. Integrity – Sometimes, the sender and receiver of a message need an assurance that the message was not altered during transmission. A digital certificate provides this feature.
3. Non-Repudiation – A sender cannot deny sending a message which has a digital signature.

Authentication of Electronic record

Section 3 of the Information technology Act, 2000, provides certain provisions for the authentication of electronic records. The provisions are:

- Subject to the provisions of this section, any subscriber can affix his digital signature and hence authenticate an electronic record.
- An asymmetric crypto system and hash function envelop and transform the initial electronic record into another record which affects the authentication of the record.
- Also, any person in possession of the public key can verify the electronic record.
- Further, every subscriber has a private key and a public key which are unique to him and constitute a functioning key pair.

Electronic Signature (Section 3A)

Electronic Signature has been defined under Section 2(1)(ta) of the Information Technology Act, 2000. Electronic Signature means the authentication of any electronic record by a

subscriber by means of the electronic technique as specified under the Second Schedule and also includes a digital signature.

Difference between Electronic Signature and Digital Signature:

S.No.	ELECTRONIC SIGNATURE	DIGITAL SIGNATURE
01.	An electronic signature is a digital form of a wet link signature that is legally binding and secure.	
	Digital Signature is a secured signature that works with an electronic signature and relies on public key infrastructure.	
02.	It can be a symbol, image, or process attached to the message or document to recognize the identity and to give consent to it.	
	It can be visualized as an electronic fingerprint that encrypts and identifies a person's identity.	
03.	It is used for verifying a document. It is used for securing a document.	
04.	The validation of electronic signatures is not performed by any trusted certificate authorities or trust service providers.	
	While the validation of digital signature is performed by trusted certificate authorities or trust service providers.	
05.	It is vulnerable to tampering. While it is highly secure.	
06.	Electronic signature is not usually authorized.	

Digital signature is usually authorized.

07. Electronic signatures cannot be verified. A digital signature can be verified.

08. Fewer security features are involved in electronic signatures.

While Digital signature is comprised of more security features.

09. Verbal, electronic ticks, or scanned signatures are the common types of esignatures.

Types of digital signatures include

Adobe and Microsoft.

10. It does not incorporate any coding or standards.

While digital signature comes with encryption standards.

11. It is simple to use, but it has a lesser level of evidential value.

It is generally preferred because of more authenticity.

12. When to use?

Electronic signatures are widely used in contracts and agreements by many businesses. For example, your company may require clients to electronically sign loan applications and other financial commitments. Y

When to use?

A digital signature uses a digital certificate to verify the signer's identity, making it a good, safe tool for sensitive data like financial records, HIPAAcompliant paperwork, and other private papers or contracts

Information Technology Amendment Act, 2008

1. Destroys, Deletes or Alters any Information residing in a computer resource or diminishes its value or utility or affects it injuriously by any means;

2. Steals, conceals, destroys or alters or causes any person to steal, conceal, destroy or alter any computer source code used for a computer resource with an intention to cause damage;

38

3. "If any person, dishonestly, or fraudulently, does any act referred to in section 43, he shall be punishable with imprisonment for a term which may extend to two three years or with fine which may extend to five lakh rupees or with both." [S.66]

4. S.66A - Punishment for sending offensive messages through communication service, etc

5. Shall be punishable with imprisonment for a term which may extend to three years and with fine.

[Show more](#)[Show less](#)

INTRODUCTION TO CYBER LAW

What is Cyber Law?

Cyber Law is the branch of law that governs activities in **cyberspace**.

Cyberspace Includes

- Computers
- Computer networks
- Internet
- Websites
- Emails
- Databases
- Software
- Mobile phones
- ATM machines
- Cloud storage
- Electronic records

In simple words:

Cyber Law regulates the use of computers, networks, digital communication and electronic transactions.

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Information Technology Act, 2000 (IT Act)

Background

In 1996, the:

United Nations Commission on International Trade Law
adopted a Model Law on Electronic Commerce.

The purpose was:

- To create uniform cyber laws worldwide.
- To encourage e-commerce.

India became the **12th country** to enact cyber legislation through the:

Information Technology Act, 2000

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Purpose of the IT Act

The IT Act provides:

Legal Recognition

for:

- Electronic records
- Electronic communication
- Electronic commerce transactions

Before the Act:

- Paper documents were legally recognized.
- Electronic documents had little legal value.

After the Act:

- Electronic records became legally valid.

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Functional Equivalence

The IT Act follows the principle of:

Functional Equivalence

Meaning:

Electronic documents should be treated like paper documents whenever possible.

Examples:

Traditional Method	Electronic Method
Paper contract	E-contract
Physical signature	Digital signature
Paper records	Electronic records

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Amendments Made by IT Act

The IT Act modified:

1. Indian Evidence Act, 1872

Added Section 65B for electronic evidence.

2. Indian Penal Code

To address cyber offences.

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Objectives of the IT Act

1. Legal Recognition of Electronic Transactions

Recognizes:

- E-commerce
- Electronic communications

as legally valid.

2. Recognition of Digital Signatures

Digital signatures can legally authenticate documents.

3. Electronic Filing

Allows filing documents electronically with:

- Government departments
 - Government agencies
-

4. Electronic Storage of Data

Encourages electronic record maintenance.

5. Electronic Fund Transfer

Facilitates online banking and fund transfer.

6. Recognition of Electronic Books of Accounts

Banks can legally maintain records electronically.

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Documents Not Covered by IT Act

Section 1(4) excludes certain documents.

The Act does NOT apply to:

1. Negotiable Instruments

Except cheques.

Examples:

- Promissory notes
- Bills of exchange

2. Power of Attorney

Under the Powers of Attorney Act.

3. Trust Deeds

Under the Indian Trusts Act.

4. Wills

Under the Indian Succession Act.

5. Sale of Immovable Property

Examples:

- Land sale
- House sale

6. Other Documents

Notified by the Central Government.

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Scope of the IT Act

The Act extends to:

Entire India

and

Extra-Territorial Jurisdiction

It applies even outside India if:

- The offence involves a computer system located in India.

Example:

A hacker in another country attacks an Indian server.

The IT Act may still apply.

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Intermediary Liability

Meaning

Intermediaries are entities that:

- Receive
- Store
- Transmit

electronic information on behalf of others.

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Definition of Intermediary

Under Section 2(w), intermediaries include:

- Telecom companies
- Internet Service Providers (ISPs)
- Search engines
- Web hosting providers
- Online marketplaces
- Online auction websites
- Payment gateways
- Cyber cafes

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Examples of Intermediary Liability

Intermediaries may face liability for:

Copyright Violations

- Music piracy
- Movie piracy

Illegal Content

- Hate speech
- Racist content
- Pornographic content

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Important Cases

Baazee MMS Case

One of India's landmark intermediary liability cases.

T-Series v. MySpace

Concerned copyright infringement on an online platform.

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Digital Signature

Definition

According to Section 2(1)(p):

Authentication of an electronic record using an electronic method.

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Features of Digital Signature

1. Authentication

Confirms identity of sender.

2. Integrity

Ensures document was not altered.

3. Non-Repudiation

Sender cannot later deny sending it.

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Authentication of Electronic Records

Under Section 3:

A subscriber can authenticate electronic records using:

Asymmetric Cryptography

Uses:

- Private Key
- Public Key

Together called a:

Key Pair

Only the owner possesses the private key.

Anyone may use the public key to verify.

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Electronic Signature (Section 3A)

Electronic Signature includes:

- Digital signature
- Other approved electronic authentication techniques

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Electronic Signature vs Digital Signature

Electronic Signature	Digital Signature
General electronic approval	Secure cryptographic signature
Can be image/symbol/tick mark	Uses encryption
Less secure	Highly secure
Usually not verified by CA	Verified by Certificate Authority
Easy to use	More authentic
Lower evidential value	Higher evidential value

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Information Technology (Amendment) Act, 2008

The amendment expanded cybercrime provisions.

Important offences include:

Destruction of Data

Destroying or altering computer information.

Computer Source Code Tampering

Destroying or altering source code.

Section 66

If a person acts dishonestly or fraudulently under Section 43:

Punishment:

- Imprisonment up to 3 years
- Fine up to ₹5 lakh
- Or both

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Section 66A

Provided punishment for sending offensive messages electronically.

Important: Later, in the landmark case *Shreya Singhal v. Union of India*, Section 66A was struck down by the Supreme Court as unconstitutional.

CYBER CRIME

Meaning

Cybercrime means:

Any unlawful act where a computer is a tool, target, or both.

Examples:

- Hacking
- Fraud
- Identity theft
- Phishing
- Cyber terrorism

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History of Cyber Crime

1820

First recorded cybercrime-like incident.

Joseph-Marie Jacquard

Workers sabotaged Jacquard's automated loom because they feared job loss.

Joseph-Marie Jacquard

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Important Timeline

1971

John Draper

used a whistle producing 2600 Hz tone to make free telephone calls.

1972

Vinton Cerf

headed the Internet standards group.

1981

Ian Murphy

became the first person convicted for computer crime.

1982

First Apple virus:

Elk Cloner

1983

Movie:

WarGames

popularized hacking.

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Categories of Cyber Crime

1. Cyber Crimes Against Persons

Examples:

- Cyber stalking
 - Cyber harassment
 - Defamation
 - Identity theft
-

2. Cyber Crimes Against Property

Examples:

- Hacking
 - Data theft
 - Software piracy
 - Computer vandalism
-

3. Cyber Crimes Against Government

Examples:

- Cyber terrorism
- Attacks on government websites
- National security threats

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Types of Cyber Crime

1. Hacking

Unauthorized access to computer systems.

2. Trojan Attack

Malicious software disguised as useful software.

3. Virus and Worm Attacks

Virus

Infects programs.

Worm

Spreads automatically across networks.

4. Email Crimes

Email Spoofing

Fake sender identity.

Email Spamming

Mass unwanted emails.

Email Bombing

Sending huge numbers of emails to crash a system.

Email Fraud

Fraud through email.

5. Denial of Service (DoS)

Overloading a system with requests.

Result:

Legitimate users cannot access services.

6. Sale of Illegal Articles

Examples:

- Drugs
 - Weapons
 - Wildlife products
-

7. Online Gambling

Illegal online betting activities.

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Why Cyber Laws Are Needed

Cyber laws are necessary because:

- Online shopping is increasing.
- Online banking is increasing.
- Electronic records are widespread.
- Cybercrime is increasing.
- Evidence is often electronic.
- Traditional laws cannot adequately govern cyberspace.

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Exam-Oriented Quick Summary

Information Technology Act, 2000

- India's main cyber law.
- Provides legal recognition to electronic records and digital signatures.

Digital Signature Features

1. Authentication
2. Integrity
3. Non-repudiation

Intermediaries

- ISPs
- Search engines
- Online marketplaces
- Payment gateways

Categories of Cyber Crime

1. Against Persons
2. Against Property
3. Against Government

Common Cyber Crimes

- Hacking
- Virus attacks
- Trojan attacks
- Phishing
- Email spoofing
- DoS attacks

Important Sections

- Section 3 – Authentication of electronic records
- Section 3A – Electronic signatures
- Section 66 – Computer-related offences
- Section 79 – Intermediary liability

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